

AR01

Annual Return

(For returns made up to a date on or after 1 October 2011)

RE-SCAN

012056/40

form produced by

IRIS

PTP PC Share Register Plus

Ver 17.4

A fee is payable with this form
Please see 'How to pay' on the
last page

You can use the WebFiling service to file this form online.
Please go to www.companieshouse.gov.uk

✓ **What this form is for**
You may use this form to
confirm that the company
information is correct as at
the date of this return
You must file an Annual Return
at least once every year

✗ **What this form is NOT for**
You cannot use this form to give
notice of changes to the company
officers, registered office address,
company type or information
relating to the company records

For further information, please
refer to our guidance at
www.companieshouse.gov.uk

Part 1

Company details

The section must be completed by all companies.

THURSDAY



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A07

27/08/2015

#181

COMPANIES HOUSE

A1

Company details

Company number

0 8 5 5 5 8 3 1

Company name in full
1

ALPHA FMC GROUP HOLDINGS LIMITED

1 Company name change

If your company has recently
changed its name, please
provide the company name as
at the date of this return

A2

Return date

Please give the annual return made up date. The return date must not
be a future date. The annual return must be delivered within 28 days
of the date given below.

If you would like the company's made up date to be earlier than 1 October
2011, please complete the AR01 appropriate for earlier made up dates.

Date of this return 2

d 0 4 m 0 6 y 2 0 y 1 5

2 Date of this return

Your company's return date is
usually the anniversary of in-
corporation or the anniversary
of the last annual return filed at
Companies House. You may
choose an earlier return date
but it must not be a later date.

A3

Principal business activity

Please show the trade classification code number(s) for the
principal activity or activities 3

Classification code 1

7 0 2 2 9

Classification code 2

Classification code 3

Classification code 4

3 Principal business activity

You must provide a trade
classification code (SIC code
2007) or a description of your
company's main business in
this section.

A full list of the trade class-
ification codes are available
on our website
www.companieshouse.gov.uk

Principal activity
description

If you cannot determine a code, please give a brief description of
your business activity below

1-9-15 028 F

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A4**Company type ¹**

Please confirm your company type by ticking the appropriate box below (only one box must be ticked)

- ☐ Public limited company
- ☒ Private company limited by shares
- ☐ Private company limited by guarantee
- ☐ Private company limited by shares exempt under section 60
- ☐ Private company limited by guarantee exempt under section 60
- ☐ Private unlimited company with share capital
- ☐ Private unlimited company without share capital

¹ Company type

If you are unsure of your company type, please check your latest certificate of incorporation or our website www.companieshouse.gov.uk

A5**Registered office address ²**

Building name/number 60 Gresham Street

Street

Post town London

County/Region

Postcode E C 2 V 7 B B

² Change of registered office

This must agree with the address that is held on the Companies House record at the date of this return

If the registered office address has changed, you should complete form **AD01** and submit it together with this annual return

A6**Single alternative inspection location (SAIL) of the company records (if applicable) ³**

Building name/number

Street

Post town

County/Region

Postcode

³ SAIL address

This must agree with the address that is held on the Companies House record at the date of this return

If the address has changed, you should complete form **AD02** and submit it together with this annual return

A7**Location of company records ⁴**Please tick the appropriate box to indicate which records are kept at the SAIL address in **Section A6**

- ☐ Register of members
- ☐ Register of directors
- ☐ Directors' service contracts
- ☐ Directors' indemnities
- ☐ Register of secretaries
- ☐ Records of resolutions etc
- ☐ Contracts relating to purchase of own shares
- ☐ Documents relating to redemption or purchase of own share out of capital by private company
- ☐ Register of debenture holders
- ☐ Report to members of outcome of investigation by public company into interests in its shares
- ☐ Register of interests in shares disclosed to public company
- ☐ Instruments creating charges and register of charges England and Wales or Northern Ireland
- ☐ Instruments creating charges and register of charges Scotland

⁴ Location of company records

If the company records are held at the registered office address, **do not** tick any of the boxes in this section

Certain records must be kept by every company while other records are only kept by certain company types where appropriate

If the records are not kept at the SAIL address, they must be available at the registered office

If any of the company records have moved from the registered office to the address in Section A6 since the last annual return, you must complete form **AD03** and submit it together with this annual return

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Part 2

Officers of the company

This section should include details of the company at the date to which this annual return is made up

- For a **secretary** who is an individual, go to **Section B1**.
- For a **corporate secretary**, go to **Section C1**
- For a **director** who is an individual, go to **Section D1**.
- For a **corporate director**, go to **Section E1**

Continuation pages

Please use a continuation page if you need to enter more officer details

Secretary

B1**Secretary's details ①**

Please use this section to list all the secretaries of the company
For a corporate secretary, complete **Section C1-C4**

Title *

Full forename(s)

Surname

Former name(s) ②

① Secretary appointments

You may not use this form to appoint a secretary. To do this, please complete form **AP03** and submit it together with this annual return

Corporate details

Please use **Section C1-C4** to enter corporate secretary details

Secretary details

All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form **CH03**

② Former name(s)

Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes

B2**Secretary's service address ③**

Building name/number

Street

Post town

County/Region

Postcode

Country

③ Service address

If you have previously notified Companies House that the service address is at 'The Company's Registered Office', please state 'The Company's Registered Office' in the address

This information will appear on the public record

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Corporate secretary

C1	Corporate secretary's details ^①	
	Please use this section to list all the corporate secretaries of the company	
Corporate body/firm name		① Corporate secretary appointments You cannot use this form to appoint a corporate secretary. To do this, please complete form AP04 and submit it together with this annual return. Corporate secretary details All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH04 . This information will appear on the public record.
Building name/number		
Street		
Post town		
County/Region		
Postcode		
Country		
C2	Location of the registry of the corporate body or firm	
	Is the corporate secretary registered within the European Economic Area (EEA)?	
	→ Yes Complete Section C3 only	
	→ No Complete Section C4 only	
C3	EEA companies ^②	
	Please give details of the register where the company file is kept (including the relevant state) and the registration number in that register	
Where the company/firm is registered ^③		② EEA A full list of countries of the EEA can be found in our guidance www.companieshouse.gov.uk ③ This is the register mentioned in Article 3 of the First Company Law Directive (68/151/EEC)
Registration number		
C4	Non-EEA companies	
	Please give details of the legal form of the corporate body or firm and the law by which it is governed. If applicable, please also give details of the register in which it is entered (including the state) and its registration number in that register	
Legal form of the corporate body or firm		④ Non-EEA Where you have provided details of the register (including state) where the company or firm is registered, you must also provide its number in that register.
Governing law		
If applicable, where the company/firm is registered ^④		
If applicable, the registration number		

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Director

D1

Director's details ^①

Please use this section to list all the directors of the company
For a corporate director, complete Section E1-E4

Title *

Full forename(s)

ANDREW

Surname

FERGUSON

Former name(s) ^②

Country/State of residence

United Kingdom

Nationality

British

Date of birth

m	m	y	y	y	y
0	4	1	9	6	5

Business occupation (if any)

Director

^① Director appointments

You cannot use this form to appoint a director. To do this, please complete form AP01 and submit it together with the annual return.

Corporate details

Please use Section E1-E4 to enter corporate director details.

Director details

All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH01.

^② Former name(s)

Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes.

D2

Director's service address ^③

Building name/number

15 Finsbury Circus

Street

Post town

London

County/Region

Postcode

E	C	2	M		7	E	B
---	---	---	---	--	---	---	---

Country

United Kingdom

^③ Service address

If you have previously notified Companies House that the service address is at 'The Company's Registered Office' please state 'The Company's Registered Office' in the address.

This information will appear on the public record.

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Director

D1Director's details ^①

Please use this section to list all the directors of the company
For a corporate director, complete Section E1-E4.

Title *

Full forename(s)

NICHOLAS BENJAMIN

Surname

BAKER

Former name(s) ^②

Country/State of residence

England

Nationality

BRITISH

Date of birth

m	0	m	2	y	1	y	9	y	7	y	4
---	---	---	---	---	---	---	---	---	---	---	---

Business occupation
(if any)

CONSULTANT

① Director appointments

You cannot use this form to appoint a director. To do this, please complete form AP01 and submit it together with the annual return

Corporate details

Please use Section E1-E4 to enter corporate director details

Director details

All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH01

② Former name(s)

Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes

D2Director's service address ^③

Building name/number

The Company's Registered Office

Street

Post town

County/Region

Postcode

Country

③ Service address

If you have previously notified Companies House that the service address is at 'The Company's Registered Office', please state 'The Company's Registered Office' in the address

This information will appear on the public record

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Director

D1	Director's details ¹		1 Director appointments You cannot use this form to appoint a director. To do this, please complete form AP01 and submit it together with the annual return. Corporate details Please use Section E1-E4 to enter corporate director details. Director details All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH01. 2 Former name(s) Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes.
	Please use this section to list all the directors of the company For a corporate director, complete Section E1-E4		
Title *	MR		
Full forename(s)	EUAN		
Surname	FRASER		
Former name(s) ²			
Country/State of residence	England		
Nationality	BRITISH		
Date of birth	d m y 0 8 1 9 6 8		
Business occupation (if any)	COMPANY DIRECTOR		
D2	Director's service address ³		3 Service address If you have previously notified Companies House that the service address is at 'The Company's Registered Office', please state 'The Company's Registered Office' in the address. This information will appear on the public record.
Building name/number	The Company's Registered Office		
Street			
Post town			
County/Region			
Postcode			
Country			

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Director

D1	Director's details ①		① Director appointments You cannot use this form to appoint a director. To do this, please complete form AP01 and submit it together with the annual return. Corporate details Please use Section E1-E4 to enter corporate director details. Director details All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH01 . ② Former name(s) Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes.
	Please use this section to list all the directors of the company For a corporate director, complete Section E1-E4		
Title *	MR		
Full forename(s)	NICHOLAS ROBIN		
Surname	KENT		
Former name(s) ②			
Country/State of residence	England		
Nationality	BRITISH		
Date of birth	2 0 4 1 9 6 2		
Business occupation (if any)	CONSULTANT		
D2	Director's service address ③		③ Service address If you have previously notified Companies House that the service address is at 'The Company's Registered Office', please state 'The Company's Registered Office' in the address. This information will appear on the public record.
Building name/number	The Company's Registered Office		
Street			
Post town			
County/Region			
Postcode			
Country			

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Director

D1	Director's details ^①		① Director appointments You cannot use this form to appoint a director. To do this, please complete form AP01 and submit it together with the annual return. Corporate details Please use Section E1-E4 to enter corporate director details. Director details All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH01 . ② Former name(s) Please provide any previous names which have been used for business purposes during the period of this return. Married women do not need to give former names unless previously used for business purposes.
	Please use this section to list all the directors of the company For a corporate director, complete Section E1-E4		
Title *			
Full forename(s)	TIMOTHY HUGH SOUTHCOMBE		
Surname	TROTTER		
Former name(s) ^②			
Country/State of residence	United Kingdom		
Nationality	BRITISH		
Date of birth	d l l 0 1 y 1 y 9 y 5 y 9		
Business occupation (if any)	DIRECTOR		
D2	Director's service address ^③		③ Service address If you have previously notified Companies House that the service address is at 'The Company's Registered Office', please state 'The Company's Registered Office' in the address. This information will appear on the public record.
Building name/number	The Company's Registered Office		
Street			
Post town			
County/Region			
Postcode			
Country			

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Corporate director

E1	Corporate director's details ^①	
	Please use this section to list all the corporate directors of the company	① Corporate director appointments You cannot use this form to appoint a corporate director. To do this, please complete form AP02 and submit it together with this annual return. Corporate director details All details must agree with those previously notified to Companies House. If you have made changes since the last annual return and have not notified us, please complete form CH02 . This information will appear on the public record.
Corporate body/firm name		
Building name/number		
Street		
Post town		
County/Region		
Postcode		
Country		
E2	Location of the registry of the corporate body or firm	
	Is the corporate director registered within the European Economic Area (EEA)? → Yes Complete Section E3 only → No Complete Section E4 only	
E3	EEA companies ^②	
	Please give details of the register where the company file is kept (including the relevant state) and the registration number in that register	② EEA A full list of countries of the EEA can be found in our guidance www.companieshouse.gov.uk ③ This is the register mentioned in Article 3 of the First Company Law Directive (68/151/EEC)
Where the company/firm is registered ^③		
Registration number		
E4	Non-EEA companies	
	Please give details of the legal form of the corporate body or firm and the law by which it is governed. If applicable, please also give details of the register in which it is entered (including the state) and its registration number in that register	④ Non-EEA Where you have provided details of the register (including state) where the company or firm is registered, you must also provide its number in that register.
Legal form of the corporate body or firm		
Governing law		
If applicable, where the company/firm is registered ^④		
If applicable, the registration number		

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Part 3

Statement of Capital ^①

Does your company have share capital?

→ Yes Complete the sections below and the following Part 4

→ No Go to Part 5 (Signature)

^① This should reflect the company's capital status at the made up date of this annual return

F1

Share capital in pound sterling (£)

Please complete the table below to show each class of shares held in pound sterling

If all your issued capital is in sterling, only complete Section F1 and then go to Section F4

Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ^②	Amount (if any) unpaid on each share ^②	Number of shares ^③	Aggregate nominal value ^④
As per continuation sheet(s)			1,533,753	£ 546,228
				£
				£
				£
Totals			1,533,753	£ 546,228

F2

Share capital in other currencies

Please complete the table below to show any class of shares held in other currencies

Please complete a separate table for each currency

Currency					
Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ②	Amount (if any) unpaid on each share ②	Number of shares ③	Aggregate nominal value ④	
Totals					

Currency				
Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ②	Amount (if any) unpaid on each share ②	Number of shares ③	Aggregate nominal value ④
Totals				

F3

Totals

Please give the total number of shares and total aggregate nominal value of issued share capital

Total number of shares 1,533,753

Total aggregate nominal value ^⑤ GBP 546,228^⑤ Total aggregate nominal valuePlease list total aggregate values in different currencies separately For example
GBP 100 + EUR 100
+ USD 10 etc^② Including both the nominal value and any share premium^③ Number of shares issued multiplied by nominal value of each share

Continuation Pages

Please use a Statement of Capital continuation page if necessary

^④ Total number of issued shares in this class

(For returns made up to a date on or after 1 October 2011)

1 This should reflect the company's capital status at the made up date of this annual return

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F4**Statement of Capital (Voting rights)**

Please give the prescribed particulars of rights attached to shares for each class of share shown in the statement of capital share tables in **Section F1** and **F2**.

Class of share

Voting rights

See continuations sheet(s)

Class of share

Voting rights

Class of share

Voting rights

Class of share

Voting rights

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F4 **Statement of Capital (Voting rights)**

Class of share	Ordinary A1
Voting rights	PLEASE SEE CONTINUATION SHEETS

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F4 **Statement of Capital (Voting rights)**

Class of share	Ordinary A2
Voting rights	PLEASE SEE CONTINUATION SHEETS

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F4 **Statement of Capital (Voting rights)**

Class of share	Ordinary B
Voting rights	PLEASE SEE CONTINUATION SHEETS

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F4 **Statement of Capital (Voting rights)**

Class of share	Ordinary C
Voting rights	PLEASE SEE CONTINUATION SHEETS

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Part 4

Shareholders

Does your company have share capital?

→ **Yes** go to **Section G1** 'Companies with share capital'

→ **No** Go to **Part 5 (Signature)**

G1

Companies with share capital

Question 1

Were any of the company's shares admitted to trading on a market at any time during this return period? Please tick the appropriate box below ①

☒ **No** go to **Section G2** 'Past and present shareholders'

☐ **Yes** go to **Question 2**

Question 2

Please only refer to Question 2 below if you have answered 'Yes' to Question 1. If you answered 'No', please go to Section G2 'Past and present shareholders'

Did the company, throughout the return period, have any shares admitted to trading on a relevant market and was it, throughout the return period, an issuer to which DTR5 applies? Please tick the appropriate box below ②

☐ **No** go to **Section G4** 'Shareholders who hold at least 5% of any class of shares of the company as at the made up date of the return'

☐ **Yes** go to **Part 5 (Signature)**

① A market is one established under the rules of a UK recognised investment exchange or any other regulated markets in or outside of the UK, or any other market outside of the UK. The current UK recognised investment exchanges and regulated markets can be found at www.fsa.gov.uk/register/exchanges.do

② DTR5 refers to the Vote Holder and Issuer Notification Rules contained in Chapter 5 of the Disclosure and Transparency Rules source book issued by the Financial Services Authority. Notification is required when the percentage acquisition of a shareholder in the company has reached a certain threshold (starting at 3%)

G2

List of past and present shareholders ③

The company is required to provide a full list of past and present shareholders if one was not included with either of the last two returns. Please tick the appropriate box below

☐ There were no shareholder changes in this period. Go to **Part 5 (Signature)**

☒ A full list of shareholders is enclosed

☐ A list of shareholder changes is enclosed

How is the list of shareholders enclosed? Please tick the appropriate box below

☒ The list of shareholders is enclosed on paper. Go to **Section G3** 'List of past and present shareholders'

☐ The list of shareholders is enclosed in another format. Go to **Part 5 (Signature)**

③ This section only applies to companies answering 'No' in Section G1

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Full List

G3**List of past and present shareholders ^①**

Changes during this period to shareholders' particulars or details of the amount of stock or shares transferred must be completed each year

You must provide a 'full list' of all company shareholders on

- the company's first annual return following incorporation,
- every third annual return after a full list has been provided

① Please list the company shareholders in alphabetical order

Joint shareholders should be listed consecutively

Further shareholders

Please use a 'List of past and present shareholders' continuation page if necessary

This section only applies to companies answering 'No' to Question 1 in Section G1

Shareholder's Name (Address not required)	Class of share	Shares or stock currently held	Shares or stock transferred (if appropriate)	
		Number of shares or amount of stock	Number of shares or amount of stock	Date of registration of transfer
Alpha FMC Group Nominees Ltd	Ordinary B	362,846		
CAMILLE ARNOULD	Ordinary B	200		
MATTHEW BACON	Ordinary B	7,936		
BAIRD CAPITAL PARTNERS EUROPE II LP	Ordinary A1	238,690		
BAIRD CAPITAL PARTNERS EUROPE II SPECIAL AFFILIATES LP	Ordinary A1	85,017		
Mr Nicholas Benjamin Baker	Ordinary B	18,127		
Mr Nicholas Benjamin Baker	Ordinary C	50,000		
LUC BAQUE	Ordinary B	20,296		
LUC BAQUE	Ordinary C	50,000		
NICHOLAS BARBONE	Ordinary B	1,159		
BEECHBROOK MEZZANINE II SARL	Ordinary A2	45,948		
Laetitia Bourgade	Ordinary B	200		
Louise Bouveau	Ordinary B	200		

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Full List

G3**List of past and present shareholders ¹**

Changes during this period to shareholders' particulars or details of the amount of stock or shares transferred must be completed each year

You must provide a 'full list' of all company shareholders on

- the company's first annual return following incorporation,
- every third annual return after a full list has been provided

¹ Please list the company shareholders in alphabetical order

Joint shareholders should be listed consecutively

Further shareholders

Please use a 'List of past and present shareholders' continuation page if necessary

This section only applies to companies answering 'No' to Question 1 in Section G1

Shareholder's Name (Address not required)	Class of share	Shares or stock currently held	Shares or stock transferred (if appropriate)	
		Number of shares or amount of stock	Number of shares or amount of stock	Date of registration of transfer
KATY BROWN	Ordinary B	1,159		
MICHAEL BURNS	Ordinary B	1,018		
CAMILLA BURROW	Ordinary B	0		
PAUL CAME	Ordinary B		1,300	12/12/2014
PAUL CAME	Ordinary B		111	12/12/2014
PAUL CAME	Ordinary B		100	12/12/2014
PAUL CAME	Ordinary B	0		
CHARLOTTE CLOSE-SMITH	Ordinary B	1,018		
MS JANE CONWAY	Ordinary B	1,269		
NEIL STEPHEN CURHAM	Ordinary C	50,000		
VALENTIN DADURE	Ordinary B	200		
CHARLES-ANTOINE DESJARDINS	Ordinary B	3,700		
PIERRE-HENRI DESJARDINS	Ordinary B	200		

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Full List

G3

List of past and present shareholders ¹

Changes during this period to shareholders' particulars or details of the amount of stock or shares transferred must be completed each year

You must provide a 'full list' of all company shareholders on

- the company's first annual return following incorporation,
- every third annual return after a full list has been provided

¹ Please list the company shareholders in alphabetical order

Joint shareholders should be listed consecutively

Further shareholders

Please use a 'List of past and present shareholders' continuation page if necessary

This section only applies to companies answering 'No' to Question 1 in Section G1

Shareholder's Name (Address not required)	Class of share	Shares or stock currently held	Shares or stock transferred (if appropriate)	
		Number of shares or amount of stock	Number of shares or amount of stock	Date of registration of transfer
GREG FRAGHER THOMAS	Ordinary C	50,000		
CAMILA TOBIAS	Ordinary B	1,159		
TIMOTHY HUGH SOUTHCOTTE	Ordinary B	15,000		
MR NIKOLAOS XANTHOPOULOS	Ordinary B	4,263		
SHABEEB YUSUF	Ordinary B	1,159		

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G4**Shareholders who hold at least 5% of any class of share(s) of the company as at the made up date of this return**

This section should show only the shareholders that hold at least 5% of any class of share(s) of the company at the date of this return

It should only be completed by companies that have answered 'Yes' to Question 1 in Section G1, and 'No' to Question 2 in Section G1

If there were no shareholders holding at least 5% of any class of share(s) at the date of this return, this section may be left blank

→ Go to **Part 5 (Signature)**

This section only applies to companies answering 'No' to Question 2 in Section G1

Please list the company shareholders in alphabetical order. Joint shareholders should be listed consecutively

Further shareholders
Please use a 'Shareholders who hold at least 5% of any class of share(s) of the company as at the made up date of this return' continuation page if necessary

Shares or stock currently held

Shareholder's name	Shareholder's address	Class of share	Number of shares or amount of stock

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Full List

G3

List of past and present shareholders ^①

Changes during this period to shareholders' particulars or details of the amount of stock or shares transferred must be completed each year

You must provide a 'full list' of all company shareholders on

- the company's first annual return following incorporation,
- every third annual return after a full list has been provided

^① Please list the company shareholders in alphabetical order

Joint shareholders should be listed consecutively

Further shareholders

Please use a 'List of past and present shareholders' continuation page if necessary

This section only applies to companies answering 'No' to Question 1 in Section G1

Shareholder's Name (Address not required)	Class of share	Shares or stock currently held	Shares or stock transferred (if appropriate)	
		Number of shares or amount of stock	Number of shares or amount of stock	Date of registration of transfer
BASTIEN FOLLAIN	Ordinary B	200		
MR EUAN FRASER	Ordinary B	21,973		
MR EUAN FRASER	Ordinary C	50,000		
MS ALICE FYFE	Ordinary B	1,018		
MR RICHARD GODDARD	Ordinary B	2,582		
Nicolas Grangeon	Ordinary B	200		
PAUL GUADAGNIN	Ordinary B	200		
Arnaud Guinebert	Ordinary B	200		
Dylan Janet	Ordinary B	200		
AMANDEEP KAUR	Ordinary B	517		
MR NICHOLAS ROBIN KENT	Ordinary B	50,000		
MR NICHOLAS ROBIN KENT	Ordinary C	140,000		
BO LANTORP	Ordinary C	50,000		

AR01 - continuation page

Annual Return

(For returns made up to a date on or after 1 October 2011)

Full List

G3

List of past and present shareholders ^①

Changes during this period to shareholders' particulars or details of the amount of stock or shares transferred must be completed each year

You must provide a 'full list' of all company shareholders on

- the company's first annual return following incorporation,
- every third annual return after a full list has been provided

^① Please list the company shareholders in alphabetical order

Joint shareholders should be listed consecutively

Further shareholders

Please use a 'List of past and present shareholders' continuation page if necessary

This section only applies to companies answering 'No' to Question 1 in Section G1

Shareholder's Name (Address not required)	Class of share	Shares or stock currently held	Shares or stock transferred (if appropriate)	
		Number of shares or amount of stock	Number of shares or amount of stock	Date of registration of transfer
Bertrand Laude	Ordinary B	3,700		
STUART MCNULTY	Ordinary C	50,000		
GUILLAUME DE LA METTRIE	Ordinary B	3,700		
VINCENT MIGNON	Ordinary B	3,700		
SAM MORELL	Ordinary B	1,018		
HUGO NEY	Ordinary B	200		
THOMAS PARISH	Ordinary B	1,159		
SARAH PEACOCK	Ordinary B	1,339		
RAPHAEL ROYERE	Ordinary B	200		
BETH SCAYSBROOK	Ordinary B	1,679		
OLGA SHAVERINA	Ordinary B	200		
HARRY SHEARER	Ordinary B	1,159		
THE GROWTH FUND LP	Ordinary A1	137,845		

AR01

Annual Return

(For returns made up to a date on or after 1 October 2011)

Part 5

Signature

This must be completed by all companies

I am signing this form on behalf of the company

Signature

Signature

X

Eman F...

X

This form may be signed by

Director ①, Secretary, Person Authorised ②, Charity commission receiver and manager, CIC manager, Judicial factor

① Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE), please delete 'director' and insert details of which organ of the SE the person signing has membership

② Person authorised

Under either section 270 or 274 of the Companies Act 2006

AR01**Annual Return**

(For returns made up to a date on or after 1 October 2011)

**Presenter information**

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name

Company name

DICKINSONS

Address

ENTERPRISE HOUSE,
BEESON'S YARD, BURY LANE

Post town

RICKMANSWORTH

County/Region

HERTS

Postcode

W D 3 1 D S

Country

United Kingdom

DX

Telephone

01923 776818

**Checklist**

We may return forms completed incorrectly or with information missing

Please make sure you have remembered the following

- ☐ That if the made up date of the return is any earlier than 1 October 2011, you must complete the appropriate form AR01
- ☐ The company name and number match the information held on the public Register
- ☐ You have completed your principal business activity
- ☐ You have not used this form to make changes to the registered office address
- ☐ You have not used this form to make changes to secretary and director details
- ☐ You have fully completed the Statement of capital (if applicable)
- ☐ You have signed the form
- ☐ You have enclosed the correct fee

**Important information**

Please note that all information on this form will appear on the public record

**How to pay**

A fee of £40 is payable to Companies House in respect of an Annual Return

Make cheques or postal orders payable to 'Companies House'

**Where to send**

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below

For companies registered in England and Wales

The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland

The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland

The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1

**Further information**

For further information, please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk

In accordance with Section
555 of the Companies Act
2006

**SH01 – continuation page
Return of allotment of shares**

Statement of capital (Prescribed particulars attaching to shares)

Class of Share **A 1 Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (Inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only

proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:

4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or

4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or

4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or

4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement

5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:

5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and

5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.

6. The provisions of **Article 13.3.5** shall:

6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;

6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.

7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:

7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and

7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

in either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:

8.1 If, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;

8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;

8.3 If any holder of Management Shares becomes a Leaver; or

8.4 If any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.

9. If any of the circumstances stated at **Article 13.3.8** have occurred:

9.1 the Shares which such holder holds or to which he is entitled; and

9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),

shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).

10. The provisions of **Article 13.3.9** shall continue to apply:

10.1 In the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;

10.2 In the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and

10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B

Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (*pari passu* as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

Statement of capital (Prescribed particulars attaching to shares)

Class of Share A 2 Ordinary

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
- 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or
 - 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
 - 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fall or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
 - 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
- 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
 - 5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
- 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
 - 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
- 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
 - 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:

8.1 If, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;

8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;

8.3 If any holder of Management Shares becomes a Leaver; or

8.4 if any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.

9. If any of the circumstances stated at **Article 13.3.8** have occurred:

9.1 the Shares which such holder holds or to which he is entitled; and

9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),

shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3**^{Error! Reference source not found.} or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).

10. The provisions of **Article 13.3.9** shall continue to apply:

10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;

10.2 in the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and

10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

**SH01 – continuation page
Return of allotment of shares**

Statement of capital (Prescribed particulars attaching to shares)

Class of Share **B Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (Inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
- 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or
 - 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
 - 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fall or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
 - 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
- 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
 - 5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
- 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
 - 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
- 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
 - 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:
- 8.1 if, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
 - 8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
 - 8.3 If any holder of Management Shares becomes a Leaver; or
 - 8.4 If any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.
9. If any of the circumstances stated at **Article 13.3.8** have occurred:
- 9.1 the Shares which such holder holds or to which he is entitled; and
 - 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),
- shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).
10. The provisions of **Article 13.3.9** shall continue to apply:
- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
 - 10.2 In the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
 - 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

**SH01 – continuation page
Return of allotment of shares**

Statement of capital (Prescribed particulars attaching to shares)

Class of Share **C Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
- 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or
 - 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
 - 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
 - 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
- 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
 - 5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
- 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
 - 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
- 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
 - 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:
- 8.1 if, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
- 8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
- 8.3 If any holder of Management Shares becomes a Leaver; or
- 8.4 if any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.
9. If any of the circumstances stated at **Article 13.3.8** have occurred:
- 9.1 the Shares which such holder holds or to which he is entitled; and
- 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),
- shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** Error! Reference source not found. or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).
10. The provisions of **Article 13.3.9** shall continue to apply:
- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
- 10.2 in the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
- 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount to equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.



Companies House

COMPANY NAME: ALPHA FMC GROUP HOLDINGS
LIMITED

COMPANY NUMBER: 08555831

A SECOND FILED AR01 WAS REGISTERED ON 14/01/2016